

Amendment No. 1 to SB0856

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 856

House Bill No. 854*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-11-115, is amended by adding the following as a new subsection:

(f) In determining under subsection (a) whether or not a defendant shall be released, the magistrate may consider hearsay evidence when the magistrate finds that the evidence is reliable if the defendant is accorded a fair opportunity to rebut any reliable hearsay evidence considered by the magistrate.

SECTION 2. Tennessee Code Annotated, Section 40-11-118, is amended by adding the following as a new subsection:

(h) In determining the amount of bail necessary to reasonably assure the appearance of the defendant while at the same time protecting the safety of the public, the magistrate may consider hearsay evidence when the magistrate finds that the evidence is reliable if the defendant is accorded a fair opportunity to rebut any reliable hearsay evidence considered by the magistrate.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.